



File No.: EXP202302933

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by Ms. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated August 11, 2023, and based on the following:

FACTS

FIRST: On August 11, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202302933, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the legal representative of the appellant on August 16, 2023, as recorded in the certificate in the file.

SECOND: The appellant submitted on September 18, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally based on the following:

"The decision to archive the complaint filed is motivated by the consideration that the entity being complained about, DIGI, has provided the security measures it has implemented to prevent impersonation or fraud in requests for duplicate SIM cards, which were complied with in the case subject to the complaint: the applicant was fully identified by phone and provided their ID at the physical store. This legal representation interprets that the contested resolution violates the principle of integrity and confidentiality in the processing of Ms. A.A.A.'s data, due to insufficient security measures, and failure to inform her about the possible security breach. The stated assertion is based on the fact that on September 4, 2021, Ms. A.A.A. complied with the second measure that is said to have been fulfilled, by going to a DIGI store with the physical ID and being attended to by the staff, when DIGI did not inform about this duplicate until December 14, 2021, as evidenced by document No. 1 provided. DIGI is untruthful when it claims that this security measure was fulfilled. It is likely that the SIM card was cloned without requesting any national identity document from the person who attended. The criminal process is provisionally archived and appealed, while the investigative proceedings to be carried out by the National Police are completed."

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted:

The resolution now being contested specified that the phone card of the now appellant was cloned by the company DIGI SPAIN TELECOM, S.L.U. ("DIGI"), since on September 4, 2021, without any security measures aimed at reliably identifying the person who requested it, a third party impersonated their identity. The entity being complained about enumerated the security measures it had implemented to prevent impersonation or fraud in requests for duplicate SIM cards: the applicant was fully identified by phone and provided their ID in person at the store.

III

Conclusion

With the documentation provided by the appellant, it is evident that this Agency requires more elements of judgment to pronounce on the regularity of the actions of the entity being complained about, specifically regarding compliance with the security measures related to the presentation of the ID by the complainant at the physical store and the knowledge of the facts reported in the criminal proceedings; therefore, the recourse is upheld to continue the proceedings.

IV

Late resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, the mandatory pronouncement of this Agency regarding the present recourse has not been issued to date. In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

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Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided by Article 21.1 of the aforementioned LPACAP.

In cases of dismissal by administrative silence, the express resolution after the expiration of the deadline shall be adopted by the Administration without any binding effect on the meaning of the silence, as provided by Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having considered the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the appeal for reconsideration filed by Ms. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on August 11, 2023, in file EXP202302933, and to continue the investigation proceedings.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and DIGI SPAIN TELECOM, S.L.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

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